



POLICE DEPARTMENT

June 26, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202300781 (Incident Date: January 4, 2023) regarding Police Officer Corey Gresh, Tax No. 949063 (DADS No. 2024-30095)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202300781, pertaining to Police Officer Corey Gresh. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Officer Gresh would be detrimental to the Police Department's disciplinary process.

In this case, Officer Gresh made a statement to an individual about the complainant that the CCRB determined to be offensive and discourteous. Based on the video and testimonial evidence, Officer Gresh did not make the statement to offend or demean the complainant. Likewise, based on the body-worn camera footage, Officer Gresh did not evince any malice toward the complainant as he uttered the statement at issue. However, Officer Gresh did use discourteous language when speaking with a member of the public. Thus, the Police Commissioner finds the statement to be discourteous but not offensive.

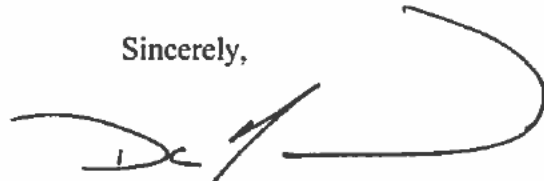
Given Officer Gresh's lack of formal disciplinary history, lack of prior substantiated CCRB complaints, positive work history, and the totality of the circumstances, a mitigated penalty is appropriate in this situation. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to issue

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Officer Gresh no disciplinary action regarding the allegation of offensive language and a Schedule "A" Command Discipline for the allegation of discourtesy.

Sincerely,

A handwritten signature in black ink, appearing to read "Anthony S. Marino". The signature is stylized with a large, sweeping loop on the right side and a horizontal line extending to the left.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

July 2, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Corey Gresh
Disciplinary Case No.: 2024-30095

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated June 26, 2024¹, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that you “determined that to pursue Charges and Specifications against Officer Gresh would be detrimental to the Police Department’s Disciplinary process” and you intend to retain jurisdiction over this matter and impose “no disciplinary action regarding the allegation of offensive language and a Schedule A Command Discipline for the allegation of discourtesy.” Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

While CCRB cannot deny that you are permitted to retain jurisdiction in matters such as this one with members of service who have a lack of a disciplinary history, CCRB requests that you allow these Charges and Specifications to be served on Police Officer Gresh and permit CCRB to prosecute this case. By not taking disciplinary action regarding the allegation of offensive language and imposing a Command Discipline Schedule A with no penalty, Police Officer Gresh is not truly being held accountable for this substantiated misconduct. If CCRB’s Charges and Specifications were served on Police Officer Gresh, and he was willing to accept substantiation of the allegations contained in those Charges and Specifications, CCRB would be willing to offer a Command Discipline Schedule B with a total penalty of the forfeiture of ten (10) vacation days, taking into consideration the facts and evidence in this matter and balancing that with Police Officer Gresh’s lack of a disciplinary history with the Department.

¹ The CCRB received Deputy Chief Marino’s letter via email at 4:22 pm on June 26, 2024. The Statute of Limitations in this matter expires on Thursday, July 4, 2024. Under the 2012 Memorandum of Understanding between our agencies, CCRB is entitled to have five (5) business days to respond to your email. Sending the letter notification on June 26th and having a response due just two (2) days before the Statute of Limitations is set to expire, circumvents CCRB’s ability to prosecute members of service for misconduct.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, CCRB disagrees with your intention of retaining jurisdiction in this matter and imposing no disciplinary action regarding the allegation of offensive language and a Command Discipline Schedule A for the allegation of discourtesy with no penalty imposed for this substantiated misconduct. CCRB requests that you allow our agency to pursue the prosecution of these Charges and Specifications against Police Officer Gresh.

Respectfully submitted,

Matthew Kadushin

Matthew Kadushin
Acting Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

July 2, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

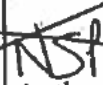
Re: CCRB Case No. 202300781 (Incident Date: January 4, 2023) regarding Police Officer Corey Gresh, Tax No. 949063 (DADS No. 2024-30095)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated July 2, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Corey Gresh. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Gresh for the reasons expressed in my June 26, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs that no disciplinary action be imposed against Police Officer Gresh for the allegation of offensive language. Furthermore, the Police Commissioner directs that a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day be issued for the allegation of discourtesy.

Sincerely,


Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

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